

Raj Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 December 2015 · Writ - C No. 65228 of 2015 · **Writ disposed of; Clause 6.14 application directed; coercive steps stayed four weeks.**

HEADNOTE

Writ to quash a Tehsildar's recovery citation for electricity dues standing against the petitioner's deceased grandfather. The petitioner offered to pay in installments and alleged arrest steps. The Court did not quash the citation. It directed that if an application under Clause 6.14 of the U.P. Electricity Supply Code, 2005 is moved within two weeks, the Executive Engineer shall decide it expeditiously, preferably within two weeks thereafter, and stayed coercive steps for four weeks.

FACTUAL SUMMARY

A Tehsildar issued a recovery citation for electricity dues against the petitioner's grandfather, Nihal Singh, said to be dead. Raj Kumar sought quashing of that citation. Counsel said the petitioner was ready to deposit the amount but needed time to pay in installments, and that arrest steps were being taken on the citation. Counsel for the Power Corporation said the petitioner could apply to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility on recovery citation

HOLDING

Where a consumer facing a recovery citation for electricity dues seeks time to pay in installments, the proper course is an application to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The Court will not itself quash the citation; it may direct that such an application, if moved within a stated time, be decided expeditiously and stay coercive steps for a short period. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Writ to quash a Tehsildar's recovery citation for electricity dues standing against the petitioner's deceased grandfather. The petitioner offered to pay in installments and alleged arrest steps. The Court did not quash the citation. It directed that if an application under Clause 6.14 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AGAINST THE DECEASED GRANDFATHER AND THE PETITIONER'S LIABILITY FOR THE DUES

Writ disposed of without examining the citation or liability; relegated to a Clause 6.14 application. ¶ 1